

ASSAULT BY SPITTING

Case	Summary & comments by court	Original sentence	Ultimate sentence	Prior convictions
<i>Grinstead v Police</i> [2004] SASC 246 20 August 2004; Supreme Court of South Australia; Anderson J	The appellant spat in the face of a police officer during a transfer in a watch house. The appellant was known to be hepatitis C positive. The police officer was concerned may have entered his eye. Held: “The correct approach to sentencing for offences of assault police and resist arrest is the same for any other offence...[A] sentence of imprisonment is only imposed when all other sentencing options have been eliminated and upon being imposed, considerations must be given as to whether it should be suspended in the circumstances of the particular case’.” at [18]. “In my view the Magistrate made no error of fact or law nor failed to take into account any material considerations, nor did he take into account any irrelevant considerations. Having regard to all of the circumstances of the offence as set out earlier, it is my view that a period of imprisonment was justified for this serious offence.” at [29].	2 months imprisonment, cumulative on other sentences	Upheld	“Young” man. 2 counts of carrying offensive weapons (not known to the Magistrate)
<i>Burgoyne v Dixon</i> (2004) 150 A Crim R 1 4 August 2004, Supreme Court of the Northern Territory, Thomas J.	The respondent was arrested for a drink-driving offence and placed in the rear of a police van. He spat at the member who asked his name ‘the member receiving saliva on the left side of his face and eye and upon his right forearm’. Held: “The magistrate was let into error by attaching the weight he did to the decision in <i>Jackaboy v O’Brien</i> and <i>Hayes v Trenergy</i> and concluding that 14 days was an appropriate sentence...this offence is an example of contumacious offending that was deserving of a significant term of imprisonment. The act of spitting in an officer’s face is humiliating and degrading. It can have far more devastating consequences and be more difficult to fend off than the more common form of assault which involves kicks or punches to the body. There is the potential risk of contracting communicable diseases...It is a serious offence. ...I would have considered an appropriate sentence to be in the order of two to four months imprisonment. Taking into account the double jeopardy attendant upon a prosecution appeal I will reduce this to a period of one month imprisonment.’	14 days imprisonment	1 month imprisonment	6 prior convictions for aggravated assault, 1 for assault police
<i>Gaston v Police</i> [2004] SASC 222 29 July 2004; Supreme Court of South Australia; Gray J	The appellant was arrested at a house. As he was carried to a cage-car, he turned and spat at a police officer. The saliva landed in the left temple area of the police officer. Held: “The Australian Institute of Criminology study on ‘Occupational Health and Safety Risks Faced by Police Officers’ outlines features common in assault-related injuries. It reports that the majority of assaults against police officers cause minor injuries and do not require time away from work. Assaults are most common during an arrest or while restraining or escorting suspects. Contact with body fluids is the second most common cause of injury, the most common being physical force.” at [14]. “[T]here is no presumption that an immediate custodial sentence is necessarily the appropriate penalty for assaults on police officers in the execution of their duty.” at [19].	2 months imprisonment	Varied 2 months imprisonment wholly suspended; 2 year CBO with 100 hours of community service	33 year old aboriginal man with care of three children. “Long history” including assaults on police, wounding, domestic violence and carrying an offensive weapon.
<i>Thomas v White</i> [2004] TASSC 7 11 February 2004; Supreme Court of Tasmania; Crawford J	The pregnant complainant was sitting in a car with her husband and children. Following a verbal exchange, the applicant walked to the car, opened the door, and spat in the complainant’s face. The spit hit her in the eyes, and down the side of her face. Held: “For a first offender of the applicant’s age, three months’ imprisonment was far above an appropriate or acceptable punishment. What the applicant did was disgusting, but no physical harm was caused, nor was it likely. The offence was not premeditated, but was provoked on the spur of the moment by Mrs Atkins’ utterances acting upon his bad mood. That she was disgusted and worried as a result of the offence was understandable, but no matter what her reasonable response may have been, the sentence was unwarranted”: at [7].	3 months imprisonment	Varied Fined \$150 (accounting for 16 days served in custody)	31 year old married man, 2 children, no prior convictions. (No spitting/sentencing cases advised to the court.)
<i>R v M</i> [2003] QCA 254 20 June 2003; Qld Court of	At the Mt Isa watch house the appellant spat in the fact of a police officer. He was on bail at the time. He said, “Fuck you, you will get Hep A and Hep B. Your life is fucked and I don’t care. I will only go away for two months for this but	2 years imprisonment	Upheld	17 year old aboriginal male.

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Appeal; Jerrard JA, White & Wilson JJ	you will be fucked for life, fuck you.” Held: “The only matter of significance in favour of his application is his youth...” “[W]hen so many opportunities for counselling had already been offered, the sentence actually imposed was one within the available ambit of a discretionary judgment.”			Numerous priors, inc burglary, wilful damage & theft. Offences in this case committed on bail.
<i>R v Juric</i> [2003] QCA 132 25 March 2003; Qld Court of Appeal; de Jersey CJ, Williams JA and Atkinson J	The applicant was arrested on New Year’s Eve. He broke free and spat blood and saliva in the faces of the two police who had arrested him. Held: “[P]rior to the 1997 amendment the general trend appeared to be to impose sentences of less than 12 months, often requiring the offender to actually serve about three to four months, for offences involving spitting on police officers.” at [9]. “[T]here is no authority truly comparable with the situation now under consideration.” at [11].	2½ years imprisonment	Varied 18 months imprisonment substituted	“Extensive history of violence, particularly directed at police officers.”
<i>R v Reuben</i> [2001] QCA 322 7 August 2001; Qld Court of Appeal; Davies JA, Williams JA, Byrne J	Police called to the house of the appellant and de-facto wife for a ‘domestic incident’. Appellant approached the police car before the police got out, saying, “Come out and I’ll bash you, you white fucking cunt.” When arrested, he bit one officer on the knee leaving teeth marks, but not breaking the skin. Held: “There are some analogies between a biting offence and a spitting offence involving a police officer but there are, of course, differences, one of which is that spitting can often be a premeditated or calculated offence whereas biting, certainly in this situation, was not premeditated. Spitting has a degrading aspect to it and it also has the aspect of contempt shown for the authority of the police, at least in some cases.”	8 months imprisonment, with 5 months suspended for 2 years	Varied 3 months, suspended for 18 months	27 year old male, young family, ‘prospects’ of employment. Wilful damage, unlawful assault, ABH, breach of domestic violence order
<i>Cox v Whitehead</i> [1999] WASCA 277 8 December 1999; Supreme Court of WA; Miller J	The appellant was arrested at a domestic incident. As he was placed in the rear of the police van, he spat blood and saliva into the face of a policewoman, causing it to enter her mouth. He spat at further police officers, blood and saliva reaching either their clothing or in two instances the face or neck area. Held: “Given the seriousness of the offences committed by the appellant in this case, and the undoubted fact that authority points to the necessity for a custodial term for such serious assaults upon police officers in the execution of their duty, I am not persuaded that the learned Magistrate was in error in declining to suspend the term of imprisonment imposed upon the appellant”: at [20]. “That said, it is clear to me that the learned Magistrate over emphasised in this case the questions of deterrence and the intrinsic nature of the offences, to the expense of factors personal to the appellant which in my view should have been given greater weight”: at [21].	18 months imprisonment, concurrent	Varied 9 months imprisonment & 6 months imprisonment cumulative.	32 year-old train driver, de facto wife and three children. Assaulting public officers, ABH
<i>R v Chen</i> [1997] QCA 355 Supreme Court of Queensland, 21 October 1997, Davies JA, Shepherdson & White JJ	Two police were called to remove Chen from premises after a domestic dispute. He refused to leave, pushed the policewoman in the chest or breast area and grabbed the genitals of the policeman. He swung handcuffs aside into the bridge of the policewoman’s nose. He spat at the policeman ‘his saliva landing on the left side of Constable Smith’s cheek’. A few seconds later he spat on the policewoman ‘also in her face’. He spat on the policeman’s right hip when being placed in the police car. He was only charged with 2 offences – assaulted each of the police in the execution of their duty. Held: ‘in the present case, though the various alleged assaults occurred within a short space of time and were part of a connected series of events they were of different kinds, the evidence with respect to them differed in quantity and quality and there were defences open to some which arguably were not open to others. ... The latent duplicity here, once exposed, left the appellant without knowledge of the particular act alleged as the foundation of the charge resulting thereby in a substantial miscarriage. It is true that these questions should have been raised at the trial. But the failure to raise them is not fatal.’	6 months imprisonment, to be suspended for 2 years after he had served 2 years	Convictions quashed	Not stated
<i>DPP v JWH</i> 17 October 1997; unrep,	The presiding magistrate had found that ‘the act of spitting did not constitute an application of force, and was therefore not a battery’. The magistrate had dismissed two cases of assault, one where the assault was allegedly constituted by	Charges dismissed	Magistrate’s order	Not stated

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Supreme Court of New South Wales; Hulme J; BC9705937	spitting in Constable Harris's face and shoulder; the other where the saliva landed on the back of the shirt of Constable Grainger. Held: 'the clothes a person is wearing are regarded as so intimately connected with the person that to touch the clothes is regarded as touching the person – <i>R v Day</i> (1845) 1 Cox 207 ... The magistrate's reasons for dismissing the charge of assault involving Constable Harris, viz that the act of spitting did not constitute an application of force, cannot stand consistently with what has been the law for over 200 years. ... the facts recounted in the case stated relating to the charge of assault involving Constable Grainger demonstrate that the Respondent was guilty of the offence of battery and, giving the term "assault" its wider meaning, assault on him.'		quashed, matter remitted to magistrate for hearing & determination according to law	
<i>Hatton v Nance</i> Qld Court of Appeal; unrep, 27 February 1997; Fitzgerald P, Davies JA and Byrne J, BC9700803.	The applicant spat on the face and open mouth of a train guard. Held: "[I]t is not relevant before this Court whether a sentence of imprisonment was within the appropriate range. Again, the question is whether there was no other sentence which was appropriate": at p 3.	Three months imprisonment	Varied 12 month CBO, 30 hours community work	18 year-old male, no prior convictions.
<i>R v Laskus</i> [1996] QCA 120 Supreme Court of Queensland 24 April 1996; MacRossan CJ, Shepherdson & Byrne JJ	The applicant attended at a police station to claim some money being held by the police. She lost control and spat at the police officer to whom she was talking. The saliva hit the police officer around the mouth, nose and eyes Held: 'The assault was of a particularly offensive kind . . . The need to impose appropriate deterrents against such conduct and to uphold the authority of police are factors which should not be overlooked by the Courts.'	4 months imprisonment To be suspended for 12 months after she had served 2 months	Unchanged	19 year old pregnant female No previous convictions
<i>Clark v Trenerry</i> (1996) 125 FLR 260 Supreme Court of the Northern Territory , 17 January 1996, Martin CJ	Applicant had been arrested for street offences. When being taken from the police vehicle at the police station he spat on a police officer. Held: "I have doubt as to the guilt of the appellant in respect of that charge...There is the significant possibility that the appellant was wrongly convicted in respect of that charge...The conviction and sentence thereon is set aside." at 266.	2 months imprisonment	Quashed	21 year old male Prior convictions for assault, including assaults on police
<i>Hill v The Queen</i> Qld Court of Appeal , unrep, 5 June 1995, Fitzgerald P, BC9507441	The appellant spat on the face and shirt of the complainant, the principal at her son's school. Held: "Critically significant factors, in my opinion, are that having done what she undoubtedly did, the applicant did not apologise, went to trial and exhibited no remorse. In the circumstances including the degrading nature of the conduct and the embarrassment and hurt that must have been caused to the complainant I think that a sentence of imprisonment was appropriate although I also agree that it was appropriate and correct to suspend it wholly and immediately."	3 months imprisonment, wholly suspended	Upheld	43 year-old female, no prior convictions.
<i>Wheeler v Bulmer</i> Supreme Court of Queensland, unrep, 2 January 1995, MacRossan CJ, Davies & Pincus JJA; BC9502167.	Applicant was arrested whilst misbehaving in street. When being placed in back of police van she spat in the face of one of the police officers, then spat on his arms, face and in his eyes and mouth. Sentenced on basis of spitting been done in reaction to applicant being spat upon by 'some children in the near vicinity'	4 months imprisonment Had already been in custody for 17 days as a result of this incident	Varied 12 months probation	16 year old female No prior convictions
<i>Sweet v Armstrong</i> [1995] QCA 406 Qld Court of Appeal, unrep, 1 September 1995, Pincus JA, Demack & Shepherdson JJ.	When arrested applicant spat in face of police officer. At watch house, on separate occasions, she spat in faces of 2 police officers	12 months imprisonment on each charge Concurrent with each other	Varied 6 months imprisonment on each charge Concurrent with each other	21 year old female Extensive criminal history

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<i>R v Benson</i> Qld Court of Appeal, unrep, 22 August 1994, McPherson, Pincus JJA & MacKenzie J, 2 August 1994, BC9406855	The applicant was leaving her house with police, detained under the <i>Drugs Misuse Act</i> . She spat on the back and back of the neck of a female police officer. Held: “Spitting at police when they are in the course of attempting to restrain or arrest a person, or holding them in custody in the execution of their proper duties, has consistently been regarded by this Court and its predecessor as an offence of a serious kind. The police are not obliged to submit to humiliation of that kind in the course of performing their duty”: at p 4.	4 months imprisonment (2 counts), served concurrently	Upheld	40 year-old female. Various minor offences; 4 assault police; 2 unlawful assault; 6 resist police.
<i>Drage v Power</i> Supreme Court of Western Australia, unrep, 2 August 1994; Wallwork J, BC9401827	The appellant, having been arrested, was being searched by police. He spat at a constable—the spittle landing on the constable’s leather jacket ‘and a little bit had hit his chin’ Held: ‘it is imperative that police officers should be protected so far as is possible for the law to protect them from offences of this nature’	12 months imprisonment	Varied 3 months imprisonment	32 year old male Numerous previous convictions since 1979
<i>Beardmore v Hargans</i> Queensland Court of Appeal, unrep, 30 March 1994, Fitzgerald P, Pincus JA & Keifel J, BC9402223	Two police officers were spat upon by the applicant through the open aperture in his cell door. Held: ‘The Magistrate correctly appreciated that imprisonment was appropriate despite the applicant’s early pleas of guilty. Further it was correct to make the sentences cumulative upon the period of imprisonment which the applicant was already serving’	6 months imprisonment on each charge Cumulative Compensation of \$1,000 ordered	Varied 6 weeks imprisonment on each charge substituted Concurrent	30 year old male Significant priors—including 2 convictions for assaults on police, 4 for resisting police
<i>Mead v Skinner</i> Supreme Court of Western Australia, unrep, 14 March 1994, Ipp J, BC9401572	The appellant was being placed in a cell at a police station. He spat in the face of one of the police officers from a distance of about 30 centimetres. Held: Court adopted comments of Supreme Court of S.A. in <i>Gohl v Miller</i> , 11 March 1991	12 months imprisonment	Varied 5 months imprisonment	24 year old male Numerous convictions—18 community based orders in last 6 years
<i>R v Hope</i> Supreme Court of Queensland, unrep, 17 August 1993, Davies JA & Moynihan SJA, BC9303197	<u>Charge 1:</u> Community correctional officer spat upon three times—once in the face. Held: ‘not only degrading but involved the risk of endangering the health of the officer assaulted. It plainly justified a term of imprisonment’ <u>Charge 2:</u> Community correctional officer spat upon—whilst speaking to applicant. Spat into officer’s mouth. Held: ‘even worse, involving as it did an even greater risk to health’	3 months imprisonment on each charge Cumulative	Unchanged ‘[W]e think the total sentence imposed in this case was fully justified’	24 year old male Substantial priors from 1981 Convictions on 5 occasions for assaults or violent crimes
<i>R v Mickle</i> Qld Court of Appeal, unrep, 21 July 1992, Macrossan CJ, McPherson & Davies JJA. BC9203257.	Appellant spat at two police officers when being arrested. Held: “The Magistrate, in sentencing him on his plea of guilty, said quite properly that the two assaults that we are concerned with were disgusting acts, that there was currently a feeling of apprehension in the community because of the diseases which are a feature of moderns times...” “[T]he Court taken an extremely serious view of the behaviour of the applicant. The fact that this disgusting kind of assault took place when the police were executing their duty is an aggravating feature.”	4 months imprisonment, concurrent	Varied 200 hours total community service substituted	None. 21 year old male. Completing 4 th year of apprenticeship; submitted from the bar table he would lose his apprenticeship if imprisoned.
<i>Bennett v Morden</i> Supreme Court of South Australia, unrep, 26 June 1992, Duggan J, BC9200354	When spoken to in a street the appellant spat in the face of a police officer. Held: ‘police officers must be protected against abusive actions of this type’ ‘deserved the magistrate’s description of it as being “demeaning and disgusting”’	6 weeks imprisonment Had served 4 days of the sentence	Varied Sentence suspended for 2 years—to perform 180 hours community	20 year old single mother—no adult prior convictions One appearance in Childrens’ Court

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<i>Dunford v Fletcher</i> Supreme Court of Tasmania, unrep, 9 August 1991, Underwood J, BC9100090	Police were called to a hotel where they arrested the applicant because of his behaviour. He spat in the face of one of the arresting constables. Held: ‘Offences such as these, committed in hotels and other public places, tend to undermine the authority of police . . . if they pass without severe curial condemnation. . . . Clearly a sentence of imprisonment was well within the proper exercise of the sentencing discretion . . . the motion to review will be dismissed’	2 weeks imprisonment Cumulative on sentences imposed for other offences	Unchanged	27 year old male A number of prior convictions including a 1981 conviction in NSW for malicious injury
<i>Gohl v Miller</i> Supreme Court of South Australia, unrep, 11 March 1991, White J, BC9100505	Appellant had been arrested after police were called to a domestic dispute. He spat at an officer, the spittle struck that officer’s face and arm. Held: ‘I agree with the magistrate that spitting on a person is a disgusting act and that spitting at a police officer is, in addition, an act of defiance and disrespect for their lawful authority’ ‘The police officer in question was entitled to feel most offended and aggrieved. As a victim of a disgusting assault, his sense of aggrievement should be assuaged by the imposition of a short sharp term of imprisonment which must be served by the appellant’	7 months imprisonment	Varied 6 weeks imprisonment	24 year old male 5 prior convictions, including 2 for resisting and 1 for assaulting police
<i>Gabriel v Campbell</i> , Qld Court of Criminal Appeal, unrep, 30 August 1990, Shepherdson, Williams & Ambrose JJ. BC9003258.	Appellant was escorted from court to watch house after receiving a three month’s prison for drug offences. As he passed the informant, he spat in his face. He was returned to court, and sentenced for the assault. Held: “[S]pitting is a particularly degrading form of assault. It was clearly done in this case with the intent to constitute as great an affront to the police officer concerned as is possible. Such an assault is calculated to cause concern about hepatitis B and similar diseases.”	3 months prison, cumulative	Unchanged	24 year old single male; de-facto relationship with three children; unemployed. Criminal history ranging from receiving stolen property to behaving in a disorderly manner, resist & assault police.
<i>Neal v The Queen</i> (1982) 149 CLR 305 High Court of Australia, 24 September 1982, Gibbs CJ, Murphy, Wilson & Brennan JJ	A magistrate at Cairns had sentenced Neal to 2 months with hard labour for spitting (unlawful assault). The Queensland Court of Criminal Appeal had increased the period to 6 months without any submission to this effect from the Crown. Held: Murphy J at p 312 – ‘Although spitting is degrading, humiliating, and insulting for the victim (and also degrades the offender), such an assault is not worse than every other type of assault that could be dealt with summarily under the <i>Criminal Code</i> .’ Wilson J at p 320 – ‘in my opinion, the magistrate was not shown to have erred in any matter of law or general principle’	Cairns MC: 2 months with hard labour Court of Criminal Appeal: 6 months with hard labour	Restored original sentence of Cairns MC 2 months imprisonment with hard labour	Male, chairman of local aboriginal council Three previous convictions: Actual bodily harm – \$200; Obstruct police – \$50; and Resist police \$75
<i>R v Smith</i> (1866) 176 ER 910 Byles J	Smith’s wife had taunted and abused him, and then spat at or on him. He then stabbed her in the neck, causing her death, and was charged with murder. The defence contended that ‘the assault by spitting, connected with the language, formed a sufficient provocation to reduce the offence to manslaughter.’ Held: ‘If the woman actually spat on him, it would be not only an assault, but a battery. If she spat at him, it would be an assault;’	Not applicable	Not applicable	Not stated
<i>The Queen v Cotesworth</i> (1704) 87 ER 928 Holt CJ	‘The indictment was for a battery upon Doctor R. The evidence was, that the defendant spit in his face.’ Held: ‘It is a battery’.	Not stated	Not stated	Not stated